

**CHAPTER xxxv.**

An Act to merge the Yorkshire College in the University of Leeds and to transfer all the property and liabilities of the Yorkshire College to the University of Leeds and for other purposes. A.D. 1904.
[24th June 1904.]

WHEREAS the Yorkshire College was in the year one thousand eight hundred and seventy-eight constituted and incorporated under the Companies Acts 1862 and 1867 as an association not for profit with the object of founding endowing and maintaining in the county of York a college or colleges and by means thereof and otherwise of promoting the education of persons of both sexes and in particular of providing instruction in such sciences and arts as are applicable or ancillary to the manufacturing mining engineering and agricultural industries of the county of York and in ancient and modern languages history and literature medicine surgery law logic moral philosophy and other branches of education and with such other subordinate objects as are in the memorandum of association of the said college mentioned :

And whereas by Royal charter dated the twentieth day of April one thousand eight hundred and eighty the Victoria University was constituted and founded having its seat in the city of Manchester with power to confer degrees and other distinctions except in medicine or surgery unless and until authority in that behalf should be given by further charter or by Act of Parliament which authority was given by a supplemental charter dated the twentieth day of March one thousand eight hundred and eighty-three :

And whereas in the year one thousand eight hundred and eighty-seven the Yorkshire College was admitted as a college in the Victoria University :

A.D. 1904.

And whereas by Royal charter dated the fifteenth day of July one thousand nine hundred and three it is provided that the Victoria University shall henceforth be called and known as "the Victoria University of Manchester" and (among other things) that on the grant of a charter establishing a university having its seat in Leeds or elsewhere in Yorkshire the Yorkshire College shall cease to be a college of the Victoria University of Manchester :

And whereas on the petition of the Yorkshire College a charter was on the twenty-fifth day of April one thousand nine hundred and four granted by His Majesty constituting in the city of Leeds a university by the name and style of "the University of Leeds" with faculties of arts science medicine and technology and such other faculties as may from time to time be constituted by the statutes of the University and with power to grant degrees and to do all acts and things which may be requisite in order to further the objects of the University as a teaching and examining body and to cultivate and promote art science and learning :

And whereas the Yorkshire College has consequently ceased to be a college in the Victoria University of Manchester and the governing body of the Yorkshire College are desirous and it is expedient that the college should be merged in the University of Leeds and that all its property and liabilities should be transferred to and vested in the last-named University :

And whereas it is expedient to empower the University of Leeds to hold examinations under section 3 of the Medical Act 1886 and to elect a representative on the general council mentioned in section 7 of the same Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the University of Leeds Act 1904.

Dissolution
of Yorkshire
College and
transfer of
property to
University
of Leeds.

2. On the passing of this Act the Yorkshire College shall be by virtue of this Act dissolved and cease to exist and all property real and personal of every description (including things in action) and all rights and privileges of the Yorkshire College which immediately before that date belonged to or were vested in that college shall be by virtue of this Act without any conveyance or

other instrument transferred to and vested in the University of Leeds for all the estate and interest therein of the Yorkshire College and shall be applied to the objects and purposes for which the University of Leeds is incorporated. A.D. 1904.

3. On the passing of this Act all debts and liabilities of the Yorkshire College shall by virtue of this Act be transferred and attached to the University of Leeds and shall thereafter be discharged and satisfied by that University. Transfer of liabilities.

4. All agreements awards contracts deeds and other instruments and all actions and proceedings and causes of action or proceedings which immediately before the passing of this Act were existing or pending in favour of or against the Yorkshire College shall continue and may be carried into effect enforced and prosecuted by or in favour of or against the University of Leeds to the same extent and in like manner as if the University of Leeds instead of the Yorkshire College had been party to or interested in the same respectively. Saving for agreements deeds actions &c.

5.—(1) The council of the Victoria University of Manchester the council of the Owens College Manchester and the council of the University of Liverpool or any of them may by agreement with the council of the University of Leeds adjust and settle all questions arising with respect to any endowments property powers privileges authorities debts liabilities obligations or expenses in which the parties to the agreement are interested and also with respect to any examinations degrees and other university and college matters. Adjustment of property and liabilities &c.

(2) An agreement under this section may provide for the transfer retention division apportionment or commutation of any endowments property debts liabilities or obligations and for a payment being made by any party to the other or others in respect of any such transfer retention division apportionment or commutation or in respect of the salary or remuneration of any officer or person and generally may make as between the parties to the agreement any provisions necessary or proper for carrying into effect the purposes of this Act.

(3) In default of agreement on any such question as aforesaid or so far as such agreement does not extend the question shall be referred to a single arbitrator to be nominated by the Lord President of His Majesty's Council on the application of any party and his award may provide for any matter for which an agreement might

A.D. 1904. — have provided And subject as aforesaid the provisions of the Arbitration Act 1889 shall apply.

Saving for
existing
officers of
Yorkshire
College.

6. All professors and other members of and persons attached to or associated with the teaching staff of the Yorkshire College and all salaried or paid officers and servants of the Yorkshire College shall hold as nearly as practicable the same offices and places in the University of Leeds as they held in the said college immediately before the passing of this Act and upon the same terms and conditions unless and until the council of the University shall otherwise decide.

Transfer of
powers to
nominate
members of
certain
governing
bodies.

7. Any power or right of the Yorkshire College or of the council senate or other members of that college as such to appoint or nominate a member of the governing body of any educational charitable or other institution shall on the passing of this Act be transferred to and may be exercised by the council of the University of Leeds.

Power of
University
of Leeds to
hold exami-
nations under
49 & 50 Vict.
c. 48.

8. The University of Leeds is hereby empowered to hold qualifying examinations in medicine surgery and midwifery for the purpose of registration under the Medical Acts as if the University had been a university in the United Kingdom legally qualified at the passing of the Medical Act 1886 to grant diplomas in medicine and surgery and the provisions of Part I. of that Act shall be read and have effect accordingly.

Power of
University
of Leeds to
choose repre-
sentative on
General
Medical
Council.

9. The council of the University of Leeds shall be entitled to choose one representative to be a member of the general council constituted by the Medical Acts and section 7 of the Medical Act 1886 shall be read and have effect as if the University of Leeds had been expressly included therein.

Application
of section 7
of Mortmain
&c. Act 1888
51 & 52 Vict.
c. 42.

10. Section 7 of the Mortmain and Charitable Uses Act 1888 shall be read and have effect as if the words "and the University of Leeds" were therein inserted after the words "Victoria University."

Construction
of bequests
in favour of
Yorkshire
College.

11. Any will deed or other document whether made or executed before or after the passing of this Act which contains any bequest gift or trust in favour of the Yorkshire College shall on and after the passing of this Act be read and have effect as if the University of Leeds were therein named instead of the Yorkshire College.

As to
Charitable
Trusts Acts.

12. The Charitable Trusts Acts 1853 to 1894 shall not extend to the University of Leeds or to any college or hall therein.

13. The council of the University of Leeds shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the University of Leeds shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any member of the said council who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

A.D. 1904.
Copy of Act
to be regis-
tered.

There shall be paid to the registrar by the University of Leeds on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

14. The costs charges and expenses of and incidental to preparing and obtaining this Act shall be defrayed by the University of Leeds out of income or of the capital of the property by this Act transferred to the University or if the council of the University think fit out of money to be raised by sale or mortgage of some part of the said property.

Costs of Act.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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